

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA**

*In the matter of an Application for
Orders in the nature of Writs of
Certiorari, Prohibition and
Mandamus under Article 140 of the
Constitution of the Democratic
Socialist Republic of Sri Lanka.*

1. Center for Eco-Cultural Studies,
No. 1613, Malabe Road,
Kottawa, Pannipitiya,
P.O. Box 03, Diyakapilla,
Sigiriya.
2. Elephant X (*Elephas Maximus*
Maximus) residing in the Gal Oya
and Minneriya area.

CA (Writ) App. No. 318/2025

PETITIONERS

Vs.

1. Hon. Attorney General,
Attorney General's Department,
Hulfsdorp, Colombo 12.
2. Mr. Ranjan Marasinghe,
Acting General Director,
Conservation of Wildlife,
Department of Wildlife
Conservation,
No. 811A, Jayanthipura,
Battaramulla.
3. J.I.D. Jayasundara,
General Manager Railways,

P.O. Box 355,
Olcott Mawatha, Colombo 10.

4. Central Environmental Authority,
Department of Excise,
No. 104,
Denzil Kobbekaduwa Mawatha,
Sri Jayawardenepura Kotte.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

Dr. Asanga Gunawansa, P.C., with S.F. Aluwihare, C. Kannangara and S.
Kariyawasam instructed by Paul Ratnayeke Associates for the Petitioner.

Nayomi Kahawita, S.S.C. for the Respondents.

Argued on: 20.01.2026

Delivered on: 10.09.2026

Judgement

Introduction

This Application has been instituted by the 1st Petitioner, who is a body corporate limited by guarantee, in dual capacity. On one hand, this Application is filed as a Public Interest Litigation (PIL), whilst on the other hand, it represents the 2nd Petitioner as the next friend, who physically cannot come and make an application before this Court, despite the fact that the 2nd Petitioner is considered as one of the most intelligent animals on Earth; the main differences between a human and the 2nd Petitioner and its relatives are that humans communicate with its own species using its own language whilst the 2nd Petitioner cannot understand and communicate using this human language, except when trained to respond in a specific way to commands received in the human language, and the 2nd Petitioner does not have hands similar to humans to perform certain activities.

However, animals are considered property in Sri Lanka; even ownership of an elephant can be acquired or transferred once a wild elephant is domesticated. However, there is still a question as to whether an elephant can seek to have rights declared by a court of law, unless such rights are recognised by the courts depending on the source of law. Although, there is a debate on this issue, in some jurisdictions, their rights have been recognised, including the right to life, despite the fact that they cannot appear before a court and make a complaint.¹

¹ Case “Mona Estrellita” (*Rights of Nature and Animals as Subjects of Rights*) [253-20-JH/22] Constitutional Court of Ecuador, 27.01.2022); *Cuqui Brown* [Habeas Corpus 789-22-JH] (Provincial Court of Justice of Napo, Ecuador, 09.08.2022); *Narayan Dutt Bhatt v. Union of India* 2018 SCC OnLine Utt 645 (Uttarakhand High Court, 4 July 2018); *Karnail Singh and Others v. State of Haryana* CRR-533-2013 (Punjab and Haryana High Court, 31 May 2019); *AFADA v. Mendoza Zoo (Cecilia)* Expte. NRO. P-72.254/15 (Third Court of Guarantees of Mendoza, 3 November 2016); *AFADA (Sandra the Orangutan)* Orangutana, Sandra s/ Habeas Corpus Case No 18491/14 (Federal Chamber of Criminal Cassation, Buenos Aires, 14 November 2014); *Islamabad Wildlife Management Board v. Metropolitan Corporation Islamabad and Others* PLD 2021 Islamabad 6 (High Court of Islamabad, 21 May 2020).

Therefore, 2nd Petitioner is represented by the 1st Petitioner as a next friend.

After issuance of formal notice, this was argued before me on 20.01.2026; hence, this judgement.

The Petitioners' grievance

The 1st Petitioner is a body corporate incorporated under the Companies Act No. 7 of 2007, and it is limited by guarantee. The 2nd Petitioner is an elephant X, whose biological name is identified as “*Elephas Maximus Maximus*”, and resides in the Gal Oya-Minneriya area, freely moving around and having access to the protected areas declared under the Fauna and Flora Protection Ordinance.

The 1st Petitioner *inter alia* has undertaken to protect the environment and raise environmental issues in courts and with other authorities, and to protect the environment's fauna and flora for the present and future generations.

Furthermore, in the course of its activities, it has already undertaken litigation in the nature of Public Interest Litigation (PIL) before this Court, as well as before the Supreme Court in Fundamental Rights applications. Thus, the 1st Petitioner dedicates its services to the public to protect the environment.

As for the Respondents, the 1st Respondent is the Attorney General, who is cited in this Application as a party representing the Republic of Sri Lanka. The 2nd Respondent is the Director General of Wildlife Conservation, the 3rd Respondent is the General Manager of Railways, and the 4th Respondent is the Central Environmental Authority established under the National Environmental Act No. 47 of 1980.

The immediate issue arising in this Application has arisen due to the accident that took place by the collision of a certain herd of elephants with a moving train, popularly known for

identification purposes as the “Meenagaya” train, being an express train operated by the Railway Department, where the 3rd Respondent is the head, which was coming from Batticaloa bound Colombo.

In this regard, it is alleged by the Petitioners that the 2nd Petitioner, who was also part of the said herd, met with the said accident which occurred on 25.04.2025 and was severely injured by the said accident. Six or more elephants of the same herd died on the spot, having succumbed to injuries sustained in the said accident, while some died later.

Accordingly, the 2nd Petitioner has a personal interest in the litigation, whilst the 1st Petitioner, representing the people of this country, is moving the Court in the cause of the 2nd Petitioner and the rest of the wildlife, mainly including elephants.

Furthermore, it is also asserted in the Petition by the Petitioners that the 2nd Respondent is under a statutory duty to prepare national plans for the purpose of protecting wild animals, particularly wild elephants, living in the protected areas declared as national reserves or strict nature reserves, which are meant basically for elephants and other species.

In addition, it is also stated in the Petition that the Northern Railway Line and Eastern Railway Line pass through protected areas, where on either side of the said lines, there are jungles roamed by elephants and other species, and particularly, the Eastern Line passes through dense jungle, famous mainly for elephants *inter alia* other species of animals.

It is further alleged by the Petitioners that the 2nd Respondent has not taken any action or implemented any national plan until the accident took place, while the 3rd Respondent also has failed to take steps or actions to avoid such accidents.

Therefore, it is alleged that a *Writ of Mandamus* lies against the Respondents, compelling them to prepare a national plan, if there is none, and to implement the national plan if there is one.

In particular, a writ lies against the 2nd Respondent to take action for the protection of wild elephants where trains operate on the Northern and Eastern Lines, where elephants and other species of animals freely roam around in the protected areas through which the said lines lie.

After the issuance of formal notice, no Objections were filed, despite several dates were obtained for that purpose.

The Petitioners assert that on February 19th, 2025, Wednesday at around 11.30 p.m., the Colombo-bound "Meenagaya" express train travelling from Batticaloa to Colombo collided with a herd of elephants, of which the 2nd Petitioner was a member; thereby, the said collision resulted in six of the elephants dying on the spot, whilst the remaining two elephants were seriously injured, including the 2nd Petitioner. Later, the other injured elephant also died, thereby resulting in the deaths of seven elephants all together. Thus, to establish this, the Petitioner has annexed **P2-A**, **P2-B**, and **P2-C**, including reports and photographs of the derailed train engine, with the Police and Railway teams investigating the matter.

Furthermore, it is alleged that collisions between elephants and trains frequently happen on the Northern Railway Line, particularly around Elephant Pass, which is popularly known as the Northern Line and on the Mannar Line, in addition to that, very often on the Eastern Line. A summary of the study published is marked as **P3**.

In addition to that, to establish the same, a news item with relevant photographs which appeared in the 'Sunday Times' is marked as **P4**.

Thus, it is alleged that the 2nd Petitioner and its relatives and its species are in real danger, in addition to the other species of animals who cannot come forward and make complaints in the Courts of Law, where the law courts are supposedly meant for humans.

It is further alleged that there has been dereliction of performance of the duties by the 2nd to 4th Respondents, resulting in the said collision. In furtherance, it is asserted that the reconstruction

of the Northern and Eastern Railways, particularly the Northern Railway, including the Mannar Line, which branches off at Madawachchi from the Northern Line and goes right up to Mannar, lies through dense jungle areas where the Government has identified and declared elephant habitats and strict natural reserves as protected areas for elephants and other species to roam around.

After the war, with the setting up and reconstruction of infrastructure, the railway operation timetable has been in full operational after 2012; to establish the same, the Petitioners have filed two documents marked as **P6** and **P7**, respectively, the reports from the printed media that the Northern and Eastern Lines operate at full operational capacity.

The Petitioners further assert that there are several other national parks and protected areas for elephants and other species; Kaudulla is one national park established in 2002 by the Gazette Notification made under the Flora and Fauna Protection Ordinance. Kaudulla is located under the irrigation plan led by King Mahasen, and from time to time, the Department of Irrigation is also involved in maintaining it; the Kaudulla Park is located around Minneriya National Park, Hurulu Eco Park, Gal Oya Eco Park and Wasgamuwa National Park, where elephants are constantly roaming.

Further, the Eastern Railway Line from Colombo to Batticaloa also passes through the said dense jungle where elephants roam; copies indicating the active railway network and national parks situated in close proximity are indicated in the two maps marked as **P8** and **P9**, annexed to the Petition.

The Petitioners further annex the Extra Ordinary Gazette marked as **P10**, to establish the regulations published under the National Environmental Act.

The Petitioners further annexed **P11A** and **P11B**, illustrating two study reports on the problems of accidents which resulted in elephant killings, to establish the gravity of the complaint of the Petitioners.

To further establish this, the Petitioners have annexed letters written to the relevant authorities, to establish the complaints made by them, marked as **P12** and **P13**.

In addition to that, the Petitioners have referred to the Fundamental Rights application filed before the Supreme Court, to establish the rights of the 2nd Petitioner and certain parties.

Relief sought

Therefore, for the dereliction of duties on the part of the Respondents, the Petitioners seek the intervention of this Court by this Application, seeking *inter alia* the following relief;

b) Issue a mandate in the nature of a writ of Mandamus directing the 2nd and/or 4th Respondents to call on the 3rd Respondent to submit an Initial Environmental Examination and/or Environmental Impact Assessment for the railway lines and railway operations in the North, East and North Central and Wayamba Provinces in terms of the Fauna and Flora Protection Ordinance and the National Environmental Act and to condition permission for the operation of the said railway lines with appropriate and meaningful preventive and mitigatory measures with regard, among others, train-elephant collisions;

c) Issue a mandate in the nature of a writ of Mandamus directing the 2nd Respondents to prepare a Management Plan for all National Reserves including a plan for protection of wildlife and avoiding deaths and injuries to animals due to development of public transport infrastructure in areas within close proximity to National reserves, in accordance with the Fauna and Flora Protection Ordinance;

d) Make an Order;

a. Report periodically to this Court on the action taken by the 2nd and/or the 4th Respondents with regard to the above orders and the subsequent action taken by the 2nd and/or the 4th Respondents;

b. As an interim measure pending the final determination of this application, order the establishment of a Committee comprising of the 2nd, 3rd and 4th Respondents, a nominee of the Honourable Attorney General, and other civil society organizations and elephant experts as to the 1st Respondent shall seem appropriate to formulate an emergency framework to encompass inter alia, the following;

i. Identification of High-Risk elephant-train collision Railway Stretches and the development of appropriate mitigation measures, including "go slow" zones with speed specification;

ii. Take appropriate disciplinary action against railway locomotive and Wildlife Protection Officers who fail to respect the speed specifications that exist and are put in place now or in the future, including prosecuting railway locomotive drivers for "killing" and/or "injuring" elephants under the Fauna and Flora Protection Ordinance;

iii. Interdepartmental Coordination between the office of the 2nd Respondent and 3rd Respondent;

iv. Strengthening the role and responsibility of the liaison officers of the 2nd Respondent on board trains operated under the 3rd Respondent, including publicly recording and reporting train speeds between identified elephant-train conflict areas;

- v. Sensitization and Training of the officials of the 3rd Respondent to minimize train collisions with elephants;*
- vi. Speed Regulations in proximity to Elephant Corridors and National Reserves;*
- vii. Adoption of Technology-based and non-technology-based Mitigation and preventive Measures; and*
- viii. To file the same in Your Lordship's Court by way of a report and thereafter to monitor implementation of the mitigatory and preventive measures and their success and update Your Lordship's Court periodically by way of monitoring reports;*

The Respondents have not filed any Objections. Instead, the Senior State Counsel, Ms. Kahawita has only filed post-argument Written Submissions for and on behalf of the Respondents.

In the Written Submissions filed by Ms. Kahawita, she has referred to the fact that there is a recognised human-elephant conflict which has been there for decades. To minimise the said conflict, a committee had been appointed in 1957, headed by Mr. K. Somasuntharam as the Chairperson, and the said Committee also included personalities such as Dr. R.L. Spittel, who was an environmentalist wildlife enthusiast, wildlife flora and fauna conservationist, and above all, a prolific writer. In the report filed by the said Committee, the human-elephant conflict has been identified, and therefore, certain measures have been suggested in the same.

Further, Ms. Kahawita brought to our notice that the same issue has been raised in the Writ Application bearing No. 420/423/430 & 433/2021, where His Lordship Justice Dr. Sobitha Rajakaruna (as he then was) had given a judgement.

Action taken by the Respondents

It is also the Respondents' position that the Respondents have identified the main areas where this human-elephant conflict is seriously affected due to train accidents.

Furthermore, Ms. Kahawita has also referred to the steps taken by various State agencies pursuant to the meetings held on 15.02.2025 and 18.03.2025 after the collision of the train resulting in the death of several elephants including causing injury and pain to the 2nd Petitioner. Therefore, not only the Department of Railway, but even the Wildlife Department has taken actions with regard to eliminating or at least minimising such accidents; this is also summarised in the Written Submissions filed for and on behalf of the Respondents.

In addition to that, the Railway Department has also taken various steps, including installing Luminous signals, clearing railway tracks to allow the train drivers to see the wild elephants better, identifying places where wild elephants use for crossing the railway lines, effecting appropriate changes to the train timetable especially to the train travelling at night from the Colombo Fort to Trincomalee route, and identifying high-risk areas where accidents normally take place with the elephants, and the brake systems that have been changed in the locomotives particularly of "Meenagaya", which allows the trains to halt quickly.

Room for action

However, as brought to our notice by the Counsel for the Petitioners, that even in the Written Submissions of the Respondents, nowhere is it mentioned that train drivers have been properly educated, and no speed limit has been indicated for between the sections identified as "elephant corridors" or where the elephants choose as crossings; no action plan has been implemented to minimise the speed between sections. Therefore, there is still room for further actions to be taken by the Railway Department.

As such, it is my view as sought by the Petitioners, from time-to-time, reports must be called for by the Railway Department; therefore, the writs sought by the Petitioners lie in that respect.

On the other hand, the Petitioners have argued, both orally as well as in their written submissions, as to why they have filed this Application in this Court; although the 2nd to 4th Respondents would have taken action within the purview of their respective mandates in protecting the 2nd Petitioner and the species to which it belongs, including other animal species and flora and fauna, further intervention of this Court has become necessary as accidents continue to take place.

Before the entire country became a Crown Colony in 1815s, there were no proper roads anywhere in the country except footpaths. The Kandyan territory was secluded and remained a natural fortress and remained protected from invasion because of its natural situation. Even during the Kandyan campaigns to conquer the Kandyan Provinces, which took place in the 1815s, troops marched only on footpaths through three different routes.

However, after the Kandyan Rebellion of 1818, the British Government decided to establish a proper road network in order to keep the Kandyan areas under control. Thereafter, with the development of coffee plantations, as well as tea, rubber, and coconut cultivation, a plantation economy developed under British rule, and, with the increasing need for transport services, the railway system was introduced.²

However, the Northern and Eastern railway lines were laid during the latter phase of British rule, particularly in the early 1900s, when railway lines were constructed through thick jungle areas where there were numerous encounters with wildlife, some of which remain recorded in folklore and popular literature, including the “Leopard of Punani”. Then, the rulers were not

² S.V. Balasingham, *The Administration of Sir Henry Ward: Governor of Ceylon 1855-1860* (Tisara Prakasakayo 1968).

interested in paying any attention to animal life, in whose benefit certain areas were declared as protected areas, sanctuaries, or natural reserves; nevertheless, they built the railway lines through the very same protected areas where the 2nd Petitioner and his relatives and other species of animals use as their natural habitat.

However, during the War which escalated in 1983 up until 2009, the railroads on the Northern Line beyond Vavuniya and the Eastern Line did not operate; even the Eastern Line was not in full operational status. However, with the cessation of hostilities between the warring parties, there was a resumption of railway operations on those lines officially from 2012, as reflected in **P6** and **P7** annexed to the Petition.

However, with the development of the railway and roadway network, human habitation gradually, not only encroached upon, but also started invading animal habitats, particularly in the buffer zones of these jungle areas, and from the very beginning the human-elephant conflict came to the forefront.

However, other animals also faced the same threat of extinction.

Nevertheless, the elephant is a symbolic icon in Sri Lankan culture, and therefore, in the late 1980s, the Government proclaimed the elephant as the 'National animal' due to its historical and cultural importance, where it remains an iconic and symbolic figure.

I wish to juxtapose to quote from a poem titled, "Elephant", written by the famous English writer of the novel, "Lady Chatterley's Lover" (1928), D.H. Lawrence, on the ceremonial elephants who participate in the Esala Perahera of Kandy;³

More elephants, tong, tong-tong, loom up,

³ D.H. Lawrence, *Birds, Beasts and Flowers* (Martin Secker Limited 1923), 169-175 <<https://www.gutenberg.org/cache/epub/60337/pg60337-images.html#ELEPHANT>> accessed 08 September 2026.

Huge, more tassels swinging, more dripping fire of new cocoa-nut cressets
High, high flambeaux, smoking of the east;
And scarlet hot embers of torches knocked out of the sockets among bare feet of
elephants and men on the path in the dark.
And devil dancers luminous with sweat, dancing on to the shudder of drums,
Tom-toms, weird music of the devil, voices of men from the jungle singing;
Endless, under the Prince.

The 2nd Petitioner's grievance before this Court epitomizes the threat that the 2nd Petitioner and his relatives face, not only of death but also of extinction. Therefore, it is our duty to protect the 2nd Petitioner.

Therefore, the 2nd Respondent, being the Director General of Conservation of Wildlife, should take action and must inform and report to this Court at regular intervals as to the measures he has taken to implement the national plan, if any, or prepare one and implement the same in due course.

Secondly, the 3rd Respondent, being the General Manager of Railways, should also report from time to time as to the measures he has taken to minimize railway accidents involving animals, particularly elephants, within the identified zones, especially along the Northern and Eastern railway lines, where several elephant passes or crossing areas have been identified as depicted in documents **P8** and **P9** (the plans).

Action recommended

Therefore, it is my view that the 3rd Respondent, being the General Manager of Railways, should be directed to report to this Court as to the action the Railway Department has taken at all levels to train locomotive drivers, whom they refer to as pilots, who are responsible not only for the safety of the passengers whom they transport daily but also for minimizing

environmental damage caused by reckless driving at excessive speeds without considering the impact on the environment and animal life. They should not remain oblivious, or purposely oblivious, to the fact that there are elephant crossings along the railway lines. The same should be extended to the Railway guards who are responsible for managing the trains.

The General Manager of Railways should take steps to identify the relevant stretches of railway track where elephant crossings or elephant passes have been identified, and drivers should be instructed and provided with continuous training, including simulator-based training similar to that provided to aeroplane pilots, in order to avoid accidents and minimize the impact on flora and fauna, including that caused by noise pollution.

Further, the drivers and guards must also be trained to regulate speed appropriately within such identified zones, allowing sufficient time to travel from the point of commencement to the point of end of those areas while complying with prescribed speed limits. Those who fail to follow such instructions should be subjected to disciplinary action in accordance with the applicable regulations.

Therefore, since I have decided to issue the writs, I am of the view that this matter should be called in three months' time from today in order to consider the action taken by the 2nd and 3rd Respondents and ascertain their progress.

Conclusion

Based on the reasons adumbrated above, I grant relief as prayed for in prayers (b), (c), and (d) of the Petition, without costs.

JUDGE OF THE COURT OF APPEAL